

		currently pending in Florida. (See <i>GSDMIA, INC., etc. v. MONSTER ENERGY COMPANY</i>, etc., et al, case no. 16-2025-CA-007624-XXXX-MA.) Plaintiff’s objections are overruled. Plaintiff’s requests for judicial notice are granted. “Granting a stay in a case where the issues in two actions are substantially identical [citations] is a matter addressed to the sound discretion of the trial court.” (<i>Thomson v. Continental Ins. Co.</i> (1967) 66 Cal.2d 738, 746.) There is currently an action pending in Florida regarding whether GSDMIA is bound to arbitration. This action seeks the same relief. Thus, the Court exercises its discretion to stay this proceeding while the Florida proceeding on the same claims is resolved. The Court vacates the CMC and sets the matter for an OSC re: Stay for 11/20/26 at 9:00 a.m., in Dept. C32.
5.	EVANS VS. DEL MAR REALTY AND INVESTMENTS 2023-01369446	1. MOTION TO QUASH SUBPOENA Plaintiff/Cross-defendant Aaron Evans’ Motion to Quash Defendant/Cross-complainant Allview Real Estate, Inc.’s (Allview) business records subpoena issued to AT&T is GRANTED in part as to request numbers 2, 6, 10, and 14 only. <u>Legal Standard</u> Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).) Plaintiff moves to quash the subpoena in its entirety on the grounds Allview has not yet identified the alleged trade secrets with sufficient particularity. Plaintiff also moves to quash request numbers 2, 6, 10, and 14 on the additional grounds they are overly broad and seek Plaintiff’s private information and potentially privileged communications between Plaintiff and his counsel. <u>Sufficient Particularity</u> Code of Civil Procedure section 2019.210 provides, “In any action alleging the misappropriation of a trade secret under the Uniform Trade Secrets Act . . . , before commencing discovery relating to the trade secret, the party alleging the misappropriation shall identify

the trade secret with reasonable particularity subject to any orders that may be appropriate under Section 3426.5 of the Civil Code.”

Plaintiff moves to quash the entire subpoena on the ground Allview’s SACC lacks the requisite specificity as it “broadly states that Del Mar’s alleged trade secrets effectively encompass any and all aspects of Del Mar’s business.” (Mtn. at 4:7-8.) The SACC defines “Trade Secret” as alleged to mean “1) client names and contact information, 2) the individualized terms of the clients’ respective property management contracts with Del Mar (particularly the fee rates charged to them for property management services), and 3) the clients’ individualized property management preferences and needs.” (SACC ¶ 19.)

The Court finds Allview has sufficiently identified the trade secrets at issue and decline to grant the motion on this ground.

Request Numbers 2, 6, 10, and 14

Request numbers 2, 6, 10, and 14 request the following:

Request No. 2 – All DOCUMENTS reflecting text messages to and from the telephone number (858) 736-4533 from September 29, 2023, through February 16, 2024.

Request No. 6 – All DOCUMENTS reflecting text messages to and from any telephone number associated with Aaron H. Evans, DOB 08/XX/1977, SSN 558-49-XXXX, from September 29, 2023, through February 16, 2024.

Request No. 10 – All DOCUMENTS reflecting text messages to and from the telephone number (858) 736-4533 from May 3, 2023, through September 29, 2023.

Request No. 14 – All DOCUMENTS reflecting text messages to and from any telephone number associated with Aaron H. Evans, DOB 08/XX/1977, SSN 558-49-XXXX, from May 3, 2023, through September 29, 2023.

Plaintiff moves to quash request numbers 2, 6, 10, and 14 on the additional grounds they are overly broad as they request text messages regardless of the subject matter and relevance to the action. (Mtn. at 5:22-24.) Plaintiff contends the documents requested pertain to text messages from Plaintiff’s personal cell phone. (Evans Decl., ¶ 4.)

When evaluating a privacy objection, a court must apply the following framework: “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important

countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552 [citations omitted]).

“The party seeking discovery must show a particularized need for the confidential information sought. The broad ‘relevancy to the subject matter’ standard is *not* enough here. The court must be convinced that the information is *directly relevant* to a cause of action or defense, i.e., that it is *essential* to determining the truth of the matters in dispute.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Discovery, § 8:320 [citations omitted, emphasis in original].)

Discovery should not be ordered “if the information sought is available from other sources or through less intrusive means.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Discovery, § 8:321, citations omitted.)

A request for every text message made for a period of over 9 months to or from Plaintiff’s personal cell phone with no limitation is overly broad. Plaintiff further contends he used his personal cell from May 2023 through the present to communicate via text message private, personal communications with his family, his friends, and multiple other individuals and entities unrelated to a business purpose as well as with counsel. (Evans Decl., ¶¶ 5, 6.) As such, Plaintiff has sufficiently demonstrated a “threatened intrusion” onto his right to privacy based on the documents requested.

In opposition, Allview states it will agree to exclude the contents of Plaintiff’s attorney-client communications with counsel after identifying the phone numbers with which those communications were made.

With respect to any other text messages, Allview contends they are relevant to both parties’ claims and that Plaintiff put the records at issue by alleging Del Mar customers “began contacting [Plaintiff] on his personal cell phone number.” (FAC ¶ 31-32.) Allview contends Plaintiff also contacted these clients to solicit business for himself.

Allview further contends there is no other way for Allview to determine whether and to what extent Plaintiff texted with Del Mar and Allview clients during the pertinent time period except via subpoena seeking such records. Allview contends Plaintiff’s proposal to limit the requests to only encompass specific client phone numbers is fundamentally unworkable as Allview does not have all phone numbers used by its clients to communicate with Plaintiff.

Allview does not dispute it has acquired the phone numbers of Del Mar's customers as part of its asset purchase agreement. (Hardeman Decl., ¶ 4.) Counsel for Allview states, however, "I have come across multiple references to Evans's telephonic communications with clients using client phone numbers previously unknown to Allview and me (which we only discovered by researching the numbers online)." (Muller Decl., ¶ 3.)

The fact that Allview may have identified client telephone numbers previously unknown to Allview does not justify the production of every text message made for a period of over 9 months to or from Plaintiff's personal cell phone. Allview has not demonstrated that this information is directly relevant to a cause of action or defense.

Accordingly, the Court GRANTS the motion to quash as to request numbers 2, 6, 10, and 14 as to the content of all text messages to and from Plaintiff and phone numbers other than those identified by Allview pursuant to a client list.

2. MOTION FOR DISCOVERY SANCTIONS

Plaintiff/Cross-defendant Aaron Evans' motion to compel Defendant/Cross-complainant Allview Real Estate Inc.'s compliance with the Court's order is GRANTED in part.

Special Interrogatory No. 3

Code of Civil Procedure section 2030.300, subdivision (e) provides, "If a party then fails to obey an order compelling further response to interrogatories, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010). (While Plaintiff cites to section 2030.290, that section refers to an order compelling answers, rather than further responses, which are at issue here.)

On 1/29/25, Plaintiff moved to compel a further response to Special Interrogatory No. 3 which asks Allview, "If YOU contend that EVANS misappropriated YOUR trade secrets, IDENTIFY all DOCUMENTS and ELECTRONICALLY STORED INFORMATION that CONSTITUTE the trade secrets." (ROA 357.)

Allview's further response stated, in part (following objections): "After a diligent search and reasonable inquiry, Responding Party is unable to produce any responsive documents. No paper documents or electronic records constitute trade secrets in and of themselves. Rather, the information contained within certain documents constitutes the trade secrets." (ROA 353.)

On 4/28/25, the Court granted the motion, stating:

Allview states in its response that there are no documents which themselves “constitute” the trade secrets. Allview asserts that Evans is seeking identification of documents which “contain” the trade secrets which is different than the documents which actually constitute the trade secrets.

In Allview’s response to Interrogatory 11, it provides a description of what it alleges are the trade secrets Evans misappropriated. For example, Allview asserts that among the trade secrets misappropriated was Evans’ knowledge of the customer’s specific preferences as reflected in the “specific terms on which Del Mar contracted with these third-party property owner clients.” Evans allegedly gained this information, in part, from looking at documents during his employment with Del Mar. As a result, in this instance, the distinction between the words “contain” and “constitute” is not a meaningful difference.

The Court ordered Allview to provide a further response to Interrogatory No. 3, “which identifies the documents which either contain or constitute the trade secrets.” (ROA 479.)

On 8/5/25, Allview served a yet further supplemental response to Special Interrogatory No. 3 stating:

There [Sic.] are four (4) discrete categories of trade secrets underlying Allview’s cross-claims against Evans: 1) the names and contact information for Del Mar’s clients poached by Evans, Mann, and/or SPS, 2) the individualized terms of these clients’ respective property management contracts with Del Mar (particularly the fee rates charged to them for property management services), 3) these clients’ individualized property management preferences and needs, and 4) the then impending asset purchase deal to be consummated between Allview and Del Mar. The first three types of trade secrets are memorialized in Del Mar’s client, tenant, and vendor contracts, client correspondence with Del Mar (including correspondence with Evans during Evans’s employment with Del Mar), internal notes relating to clients and client properties, client working files, client property files, tenant applications, property condition records, payment records, tenant ledgers, eviction lists and court records, preferred vendors, and other books and records of Del Mar relating to the poached clients. The latter type of trade secret is memorialized in the Asset Purchase Agreement as between Del Mar and Allview and internal communications between Del Mar and its employees, Evans included, relating to the same. To the extent that Requesting Party otherwise demands further details regarding the foregoing, a further response would

necessitate the preparation of a compilation, abstract, audit, or summary of or from the documents of Allview, and the burden and/or expense of preparing it would be substantially the same for both Requesting Party and Responding Party. For this reason, acting pursuant to C.C.P. § 2030.280, Responding Party Allview refers Requesting Party Evans to its May 28, 2025 document production.

(Hardeman Decl., Ex. 2 at pp. 4-5.)

The Court ordered Allview to provide a further response “which identifies the documents which either contain or constitute the trade secrets.” (ROA 479.) Allview has complied with the Court’s order in that it has provided various categories of documents containing/constituting trade secrets.

To the extent Plaintiff contends this response is insufficient as the documents were not identified with sufficient particularity as set forth in Plaintiff’s Special Interrogatories’ definition of “Identify,” Plaintiff could have raised such a challenge in a motion to compel further responses. Similarly, Plaintiff could have raised its contention Allview’s invocation of Code of Civil Procedure section 2030.230 was improper in such a motion.

The Court DENIES Plaintiff’s motion to compel compliance with respect to Special Interrogatory No. 3.

Requests for Production

Request for Production (RFP) No. 49

Code of Civil Procedure section 2031.310, subdivision (i) provides, “Except as provided in subdivision (j), if a party fails to obey an order compelling further response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of, or in addition to, that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010).”

Plaintiff contends Allview has not fully complied with the Court’s 4/28/25 order with respect to RFP No. 49.

With respect to RPF No. 49, the Court’s 4/28/25 order stated:

Allview states in its Further Supplemental Response that all “non-privileged” documents will be produced. (Exh. 11) Evans states that documents have not been produced (Evans Decl. ¶12) and Allview does not dispute that no documents have been produced (Opp. at 14:14-19). This suggests that documents are being withheld based on

privilege. However, there is no privilege log as to what documents are being withheld in response to these requests. Accordingly, the motion is GRANTED, in part, and Allview is ordered to provide a privilege log for the privileged documents withheld for each request.” (ROA 479.)

Accordingly, the only order the Court made with respect to RFP No. 49 was for Allview to provide a privilege log with respect to withheld documents.

Allview provided two privilege logs on 5/28/25. (Hardeman Decl, Exs. 6 and 7.) Allview contends “the only documents Allview identifies as privileged are its communications with its counsel of record in this case and its counsel’s notes and draft versions of documents in this action.” (Opp. at 12:3-6.) Allview states, there are “[n]o other materials have been withheld on privilege grounds.” (Opp. at 12:7-8.)

Plaintiff contends the privilege logs are insufficient.

The two privilege logs appear identical other than the date range, with one log referencing documents from 1/31/24 to 4/14/25 and the other from 1/31/24 to 5/28/25. Each of the privilege logs contain only two rows of entries, one listing communications received by Daniel Gutierrez of Allview from counsel and the other listing communications sent from Gutierrez to counsel. Both rows describe the documents as “Attorney-client privileged communications relating to this action, litigation strategy, and documents produced.” “In general, . . . a privilege log typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document’s date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted.” (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1130 [citations omitted].) Thus, a privilege log may be deficient where it fails to provide a description of the documents or their contents sufficient to allow a determination whether the documents are privileged. (*Id.* at p. 1129, fn. 5) This is because “[e]ven assuming all of the documents were communications with an attorney, not all communications with an attorney are privileged. Instead, the attorney-client privilege attaches only to confidential communication made in the course of or for the purposes of facilitating the attorney-client relationship.” (*Ibid.*)

Here, including all withheld documents within two broad categories does not identify who authored, sent, or received each allegedly privileged document or the document’s date. Nor is the sole description of “Attorney-client privileged communications relating to this action, litigation strategy, and documents produced” sufficient to allow a determination whether the documents are

		privileged. The Court GRANTS Plaintiff's motion to compel compliance with respect to RFP No. 49 and ORDERS Allview to produce a supplemental privilege log. <u>RFP Nos. 1, 3, 4, 6, and 7</u> With respect to RFPs Nos. 1, 3, 4, 6, and 7, the Court ordered Allview "to produce all documents which support its claim that Evans misappropriated trade secrets, including those documents identified in Allview's response to Special Interrogatory No. 6. This should include the documents which contain the information which Allview claims Evans misappropriated and upon which it bases its claim for misappropriation of trade secrets." (ROA 479.) Allview contends it served modified discovery responses to Special Interrogatories on 8/25/25, clarifying it was only relying on those internal books and records "relating to all Del Mar and/or Allview clients poached by Evans, Mann, and/or SPS" (Opp. at 10:8-11.) Allview further responses to Special Interrogatory No. 6 at the time of the Court's order referred to "[a]ll internal books and records of Del Mar Parties, including all records relating to its property management clients." Allview cannot unilaterally change the scope of the Court's order by subsequently serving a further supplemental response. Allview's further responses to Special Interrogatory No. 6 also identified "[c]orrespondence between former Del Mar property management clients and Del Mar terminating their property management agreements." Allview does not contend it has produced all documents with respect to this category or the other categories set forth in its further response to Special Interrogatory No. 6 <i>at the time of the Court's 4/28/25 order</i>. The Court GRANTS Plaintiff's motion to compel compliance with respect to RFP Nos. 1, 3, 4, 6, and 7 and ORDERS Allview's compliance with the Court's 4/28/25 Order with respect to these requests for production. The Court DENIES both parties' request for sanctions.
6.	GUZMAN VS. BEC ELECTRIC, INC. 2025-01525454	MOTION TO STRIKE PORTIONS OF COMPLAINT Defendant BEC Electric, Inc. dba Service Lion's Motion to Strike Portions of Plaintiff's Complaint is DENIED. Defendant moves to strike portions of Plaintiff's complaint on the ground Plaintiff failed to plead facts sufficient for an award of punitive damages.